

PGAM MEDIA LLC — CONTRIBUTOR AGREEMENT

(US Contributor Template)

Plain-English preamble. PGAM Media LLC operates a portfolio of editorial properties, including *boxingnews.com*, *destination.com*, and *healthnation.com*. Third-party image-licensing agents (paparazzi wires, stock services, and rights-holders) actively monitor these properties and issue demand letters when they believe an image was used without a license. Because PGAM cannot independently verify the provenance of every image a contributor submits or embeds, this Agreement puts the responsibility for image rights on the person who chose the image — the Writer. If a Writer submits an article containing a photograph, screenshot, or other media that the Writer does not have the right to use, the Writer — not PGAM — is on the hook for the resulting claim. Read Section 4 (Writer Warranties on Content and Images) and Section 6 (Indemnification) carefully before signing.

1. Parties and Effective Date

This Contributor Agreement (the "**Agreement**") is entered into as of **[EFFECTIVE DATE]** (the "**Effective Date**"), by and between:

PGAM Media LLC, a Florida limited liability company with a principal place of business at **[PGAM ADDRESS]** ("**PGAM**" or the "**Company**"); and

[WRITER LEGAL NAME], an individual residing at **[WRITER ADDRESS]** (the "**Writer**").

PGAM and Writer are referred to individually as a "Party" and collectively as the "Parties."

2. Scope of Services

2.1 Writer will produce written editorial content, including articles, features, news reports, reviews, listicles, or other written works (each, a "Deliverable" and collectively, the "Content"), on assignments issued by PGAM or its authorized editors. Assignments may be issued in writing (email, Slack, Discord, CMS, or other written channel) and will include the topic, length, deadline, and any specific editorial requirements.

2.2 Writer will submit each Deliverable through PGAM's designated content management system (Sanity, WordPress, Google Docs, or such other system as PGAM directs) by the assigned deadline. Time is of the essence.

2.3 PGAM has sole editorial discretion to accept, revise, reject, edit, rewrite, publish, unpublish, or decline to publish any Deliverable, at any time and for any reason.

2.4 Nothing in this Agreement obligates PGAM to issue any minimum number of assignments, and nothing obligates Writer to accept any specific assignment. This is a non-exclusive, project-by-project arrangement.

3. Compensation and Payment Terms

3.1 **Rate.** PGAM will pay Writer **\$11.00 USD per published Deliverable** (the "Article Rate"), unless a different rate is agreed in writing (including by email) for a specific assignment. The Article Rate is inclusive of all research, drafting, revisions, image sourcing, and reasonable follow-up edits.

3.2 **Payment schedule.** PGAM will pay Writer on a **net-30 basis**, calculated from the last day of the month in which the Deliverable was published on a PGAM property. Payments will be made by ACH, wire, PayPal, Wise, or such other method PGAM designates. Writer is responsible for supplying accurate payment details and updating them promptly.

3.3 **Kill fee.** If PGAM commissions a Deliverable in writing and then elects not to publish it for reasons other than Writer's breach of this Agreement (including breach of Section 4 or Section 5), PGAM will pay Writer a kill fee equal to **50% of the Article Rate** for that Deliverable. No kill fee is owed for (i) Deliverables submitted late, (ii) Deliverables rejected for quality, plagiarism, undisclosed AI use, or breach of any warranty in Section 4, or (iii) Deliverables Writer withdraws.

3.4 **Expenses.** Writer is responsible for all costs of producing Deliverables, including software, subscriptions, image licenses, travel, and equipment. PGAM will not reimburse expenses unless pre-approved in writing.

3.5 **Taxes.** Writer is an independent contractor (see Section 10) and is solely responsible for all applicable taxes, including self-employment and income taxes, on amounts paid under this Agreement. PGAM will issue an IRS Form 1099-NEC (or equivalent) for U.S. Writers whose annual compensation meets the applicable reporting threshold.

4. Grant of Rights; Work Made for Hire

4.1 **Work made for hire.** Writer and PGAM agree that all Deliverables, and every element of the Content (including text, headlines, taglines, subheads, captions, image selections, layouts, video scripts, and any other original expression produced under this Agreement) are "**works made for hire**" as that term is defined in 17 U.S.C. § 101, and are commissioned by PGAM as contributions to a collective work, an audiovisual work, or a compilation. All copyright in the Content shall vest in PGAM automatically upon creation.

4.2 **Backstop assignment.** To the extent any Deliverable or portion thereof does not qualify as a work made for hire under 17 U.S.C. § 101, Writer hereby **irrevocably assigns, transfers, and conveys to PGAM**, its successors and assigns, all right, title, and interest — including all copyrights, moral rights, rights of paternity and integrity, publicity rights, database rights, and all other proprietary rights — in and to the

Deliverable and all derivatives thereof, worldwide, in perpetuity, on a royalty-free and irrevocable basis. Writer waives, to the maximum extent permitted by law, any moral rights or *droits moraux* in the Deliverables and agrees not to assert any such rights against PGAM, its licensees, or assignees.

4.3 Further assurances. On PGAM's reasonable request and at PGAM's expense, Writer will execute any further documents, and take any further actions, necessary to perfect or record PGAM's ownership of the Content, including copyright registrations, assignments, and enforcement actions against infringers.

4.4 Byline. PGAM will use commercially reasonable efforts to publish Deliverables under a byline mutually agreed upon in writing (which may be the Writer's real name, a pen name, or a house byline such as "Boxing News Staff" or "Destination.com Editorial"). PGAM reserves the right to publish, republish, syndicate, aggregate, or excerpt Deliverables under a different byline where operationally required (e.g., for MSN, Apple News, or other syndication partners).

5. Writer Warranties on Content and Images

Plain-English framing. This is the most important section of this Agreement. If you cannot honestly make every one of the representations below for a Deliverable you are about to submit, **do not submit it**. Ask an editor first.

5.1 Writer represents, warrants, and covenants to PGAM, as of the date each Deliverable is submitted and again as of the date each Deliverable is published, as follows:

- (a) Originality of text.** All text in the Deliverable is original to Writer and was written by Writer. It is not plagiarized, paraphrased from a copyrighted source without permission, or copied from any third-party work. Writer has not used any generative artificial intelligence tool (including ChatGPT, Claude, Gemini, Copilot, Perplexity, or any similar tool) to draft, rewrite, or substantially assist in producing the Deliverable, except as disclosed to PGAM in writing in advance under Section 6.
- (b) Media rights.** For every image, photograph, screenshot, GIF, video, video still, audio clip, illustration, chart, embed, or other media (each, a "**Media Item**") that Writer submits with, embeds in, uploads to the CMS for, references by *img src* hotlink from, or otherwise includes in a Deliverable, **exactly one of the following is true**, and Writer will maintain documentation to prove which one:
 - (i)** Writer owns the copyright to the Media Item outright (e.g., Writer photographed or created it); OR
 - (ii)** Writer holds a valid, current license from the rights-holder that expressly permits commercial editorial use on PGAM's properties, and Writer has provided PGAM with a copy of that license on request; OR
 - (iii)** The Media Item is unambiguously in the public domain, or is licensed under a Creative Commons or equivalent open license, and Writer has (A) verified the license terms, (B)

complied with any required attribution, and (C) recorded the source URL, license name, and attribution string in the CMS field designated for that purpose; OR

- (iv) The Media Item is used under a good-faith fair-use analysis (17 U.S.C. § 107) that Writer has documented in writing to PGAM before publication, including Writer's written analysis of the four fair-use factors as applied to the specific use.
- (c) **Screenshots and derivative works.** A screenshot, still frame, or excerpt of third-party content (including news sites, social media posts, YouTube, TikTok, Instagram, X/Twitter, television broadcasts, and streaming video) is treated as a derivative use of the underlying copyrighted work and is subject to the same warranty as Section 5.1(b). Embedding via official embed code (e.g., X's tweet-embed, Instagram's embed, YouTube's iframe) is permitted subject to the platform's embed terms, but Writer represents that the underlying content is not itself infringing (e.g., not a reposted news wire photo).
- (d) **Proof of rights on demand.** Writer will provide PGAM, on request, documentary proof of ownership or license (including license certificate, receipt, download page, source URL, or license terms) for any Media Item within **five (5) business days**. Failure to produce proof within that window is a material breach of this Agreement and permits PGAM to (i) unpublish the affected Deliverable at Writer's cost, (ii) withhold any pending kill fee or unpaid Article Rate for that Deliverable, and (iii) treat the incident as grounds for immediate termination under Section 9.
- (e) **No paparazzi, wire, or stock without license.** Writer will not source any Media Item from a paparazzi wire, celebrity photo agency, stock photography service, or news wire — including but not limited to *Splash News*, *BackGrid*, *MEGA*, *GC Images*, *Coleman-Rayner*, *Bauer-Griffin*, *Broadimage*, *Pacific Coast News*, *Getty Images*, *Shutterstock*, *Alamy*, *Associated Press (AP)*, *Reuters*, *Agence France-Presse (AFP)*, *USA Today Network*, or *ImageCollect* — unless (i) PGAM holds a valid, paid, current license covering that specific Media Item and use, and PGAM has confirmed the license to Writer in writing, or (ii) Writer personally holds such a license and provides a copy to PGAM before publication. **Google Image search results, "reverse image search" hits, images pulled from another publisher's article, and images found via social media are NOT licenses** and do not satisfy this section.
- (f) **No defamation, false light, or privacy violations.** The Deliverable does not defame any person or entity, does not portray any person in a false light, does not violate any right of publicity or privacy, does not infringe any trademark or trade dress, and does not constitute false advertising. Any factual assertion in the Deliverable is either (i) supported by Writer's good-faith editorial judgment and reliable sources, or (ii) clearly presented as opinion or commentary.
- (g) **No third-party claims.** Writer is not aware of any pending or threatened claim by any third party against Writer or PGAM arising from the Content or any Media Item.

- (h) **Authority.** Writer has full right, power, and authority to enter into and perform this Agreement, and doing so does not breach any other contract, employment agreement, non-compete, or non-disclosure obligation Writer has to any third party.

5.2 **Survival.** The representations, warranties, and covenants in this Section 5 survive termination or expiration of this Agreement indefinitely, in respect of any Deliverable submitted or published prior to termination.

6. Artificial Intelligence (AI) Disclosure

6.1 **Duty to disclose.** If Writer uses any generative AI tool (including but not limited to ChatGPT, Claude, Gemini, Copilot, Perplexity, Jasper, Sudowrite, or any large-language-model, image-generation, or transcription tool) in any part of producing a Deliverable — including outlining, drafting, rewriting, summarizing sources, generating headlines, translating, or generating images — Writer will disclose that use to PGAM **in writing, in advance of submission**, identifying (i) the tool, (ii) the portion of the Deliverable affected, and (iii) whether the AI output was human-edited before submission.

6.2 **PGAM discretion.** PGAM may accept, revise, or reject any AI-assisted Deliverable at its sole discretion, including for reasons of house voice, syndication partner rules (e.g., MSN's AI-content restrictions), or SEO policy.

6.3 **Undisclosed AI = material breach.** Any AI-generated or AI-assisted content submitted without the disclosure required by Section 6.1 is a material breach of this Agreement. PGAM may (i) reject the Deliverable with no kill fee, (ii) unpublish it at Writer's cost, (iii) recover any Article Rate previously paid for that Deliverable, and (iv) terminate this Agreement immediately under Section 9.

6.4 **AI-generated images.** AI-generated images (including from Midjourney, DALL-E, Stable Diffusion, or similar) may only be included in a Deliverable if (i) their use is disclosed under Section 6.1, (ii) PGAM has approved AI imagery for that specific property, and (iii) the generated image does not incorporate copyrighted characters, likenesses of real people without permission, or trademarks.

7. Indemnification

7.1 **Writer's indemnity.** Writer will defend, indemnify, and hold harmless PGAM, its officers, members, employees, agents, and affiliates (including its editorial properties boxingnews.com, destination.com, and healthnation.com and any successor properties) (the "PGAM Indemnitees") from and against any and all third-party claims, demands, suits, actions, investigations, proceedings, judgments, damages, losses, fines, penalties, settlements, costs, and expenses (including reasonable attorneys' fees, court costs, expert-witness fees, and pre-litigation demand-letter response costs) (collectively, "**Losses**") arising out of or relating to:

- (a) any breach by Writer of any representation, warranty, covenant, or obligation in this Agreement (including any breach of Section 5 or Section 6);

- (b) any claim of copyright infringement, trademark infringement, right-of-publicity violation, right-of-privacy violation, defamation, false light, false advertising, or violation of the Digital Millennium Copyright Act (17 U.S.C. § 501 et seq. and § 1202) arising from any Deliverable or any Media Item Writer submitted, embedded, uploaded, or referenced;
- (c) any claim by a paparazzi wire, stock service, news wire, photo agency, or individual rights-holder alleging unlicensed use of a Media Item Writer sourced; and
- (d) any claim by any third party (including a former employer, client, or joint author) that Writer did not have the right to grant PGAM the rights granted in Section 4.

7.2 Procedure. PGAM will (i) give Writer prompt written notice of any claim for which indemnity is sought, (ii) allow Writer to control the defense and settlement of the claim with counsel reasonably acceptable to PGAM, provided that Writer may not settle any claim in a manner that admits liability on PGAM's part or imposes any obligation on PGAM without PGAM's prior written consent, and (iii) reasonably cooperate with Writer at Writer's expense. Notwithstanding the foregoing, PGAM may, at its sole option and at Writer's expense, assume control of the defense with counsel of its own choosing at any time.

7.3 Settlements PGAM pays. If PGAM elects to resolve a claim by paying a settlement or demand (including a pre-litigation demand-letter settlement) rather than litigating, and the claim is one for which Writer owes indemnity under Section 7.1, Writer will reimburse PGAM for the settlement amount plus PGAM's reasonable costs, provided the settlement was commercially reasonable in light of the claim.

7.4 Setoff. PGAM may set off amounts owed to Writer (including Article Rates and kill fees) against Writer's indemnity obligations under this Section 7.

7.5 Survival. This Section 7 survives termination or expiration of this Agreement indefinitely.

8. Confidentiality

8.1 Definition. "Confidential Information" means any non-public information Writer receives from or about PGAM in connection with this Agreement, including editorial calendars, unpublished drafts, keyword lists, source lists, contact lists, internal Slack, Discord, or email communications, analytics data (GA4, Search Console, MSN payouts), advertiser and syndication-partner terms, rate cards, business plans, and any information marked or reasonably understood to be confidential.

8.2 Obligation. Writer will (i) hold Confidential Information in strict confidence, (ii) use it only to perform under this Agreement, (iii) not disclose it to any third party without PGAM's prior written consent, and (iv) protect it with at least the same degree of care Writer uses for Writer's own confidential information, but no less than reasonable care.

8.3 Exclusions. Confidential Information does not include information that (a) is or becomes publicly available without breach of this Section, (b) Writer already knew without confidentiality obligation, (c) Writer independently developed without use of Confidential Information, or (d) Writer is legally

compelled to disclose (in which case Writer will give PGAM prompt written notice and cooperate with any protective order).

8.4 **Duration.** These obligations survive termination for **three (3) years**, except that obligations concerning trade secrets survive indefinitely for so long as the information remains a trade secret under applicable law.

9. Term and Termination

9.1 **Term.** This Agreement begins on the Effective Date and continues on an at-will basis until terminated under this Section 9.

9.2 **Termination for convenience.** Either Party may terminate this Agreement for any reason on **fourteen (14) days' prior written notice** to the other Party.

9.3 **Termination for cause.** PGAM may terminate this Agreement **immediately** upon written notice to Writer for (i) any breach of Section 5 (Writer Warranties on Content and Images), (ii) any breach of Section 6 (AI Disclosure), (iii) any breach of Section 7 (Indemnification), (iv) any breach of Section 8 (Confidentiality), or (v) any conduct by Writer that in PGAM's reasonable judgment materially damages PGAM's reputation or its relationships with syndication or advertising partners.

9.4 **Effect.** On termination, PGAM will pay Writer for any Deliverables published before the termination date at the applicable Article Rate on PGAM's normal payment cycle, subject to any setoff under Section 7.4. All rights granted in Section 4, and all obligations in Sections 5, 6, 7, 8, and 10, survive termination.

10. Independent Contractor

10.1 **Status.** Writer is an **independent contractor**, not an employee, agent, partner, or joint venturer of PGAM. Nothing in this Agreement creates an employer-employee, agency, partnership, or fiduciary relationship.

10.2 **No benefits.** Writer is not entitled to any employee benefit, including health insurance, retirement, workers' compensation, unemployment insurance, or paid time off. PGAM will not withhold any taxes from payments to Writer.

10.3 **Control.** Writer controls the manner and means of producing Deliverables and may work for other clients (including PGAM's competitors), subject to the confidentiality and warranty obligations in this Agreement.

11. Miscellaneous

11.1 **Governing law.** This Agreement is governed by the laws of the **State of Florida**, United States, without regard to its conflict-of-laws principles.

11.2 **Venue.** Any dispute arising out of or relating to this Agreement will be brought exclusively in the state or federal courts located in [FLORIDA COUNTY, e.g., Miami-Dade County], Florida, and each Party consents to personal jurisdiction and venue there.

11.3 **Notices.** Notices under this Agreement must be in writing and are effective (i) when delivered by hand, (ii) three (3) business days after mailing by certified mail, return receipt requested, or (iii) when sent by email to the address the recipient has designated in writing, with confirmed delivery.

11.4 **Entire agreement.** This Agreement (including any written assignment orders or amendments) is the entire agreement between the Parties on its subject matter and supersedes all prior discussions, understandings, and agreements.

11.5 **Amendments.** This Agreement may be amended only by a written instrument signed by both Parties (electronic signature counts).

11.6 **Assignment.** Writer may not assign this Agreement or any right under it without PGAM's prior written consent. PGAM may assign this Agreement to any successor entity, affiliate, or acquirer of substantially all of its assets or of any of its editorial properties.

11.7 **Severability.** If any provision of this Agreement is held invalid or unenforceable, the remainder remains in full force and effect, and the invalid provision will be reformed to the minimum extent necessary to make it enforceable.

11.8 **No waiver.** A Party's failure to enforce any provision of this Agreement is not a waiver of that provision or of any other provision.

11.9 **Counterparts and electronic signature.** This Agreement may be executed in counterparts. Electronic signatures (including via DocuSign, HelloSign / Dropbox Sign, Adobe Sign, or similar) are valid and binding under the U.S. E-SIGN Act (15 U.S.C. § 7001 et seq.) and the Florida Electronic Signature Act.

11.10 **Attorneys' fees.** In any action to enforce this Agreement, the prevailing Party is entitled to recover its reasonable attorneys' fees, costs, and expenses.

12. Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PGAM MEDIA LLC

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE, e.g., Managing Member]

Date: _____

WRITER

By: _____

Name: [WRITER LEGAL NAME]

Date: _____

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